

SENATE BILL 2540

By Hatcher

AN ACT to amend Tennessee Code Annotated, Title 8,
Chapter 4, Part 6 and Title 10, Chapter 7, Part 5,
relative to public record fees.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 10-7-503(a)(7)(A)(i), is amended by deleting the subdivision and substituting:

(i) A governmental entity shall not require a written request to view a public record unless otherwise required by law. Requests to view public records may be submitted in person or by telephone, fax, mail, or email if the governmental entity uses such means of communication to transact official business, or via internet portal if the governmental entity maintains an internet portal that is used for accepting public records requests.

SECTION 2. Tennessee Code Annotated, Section 10-7-503(a)(5), is amended by deleting the subdivision and substituting instead the following:

(5) Information made confidential by state law shall be redacted whenever possible, and the redacted record shall be made available for inspection and copying. The redaction of confidential information shall not constitute the creation of a new record. Costs associated with redacting records, including the cost of copies and staff time to provide redacted copies, shall be borne by the requestor seeking to inspect or receive copies of records that require redaction.

SECTION 3. Tennessee Code Annotated, Section 10-7-503(a)(7)(B)(i), is amended by deleting the subdivision and substituting instead the following:

(i) A records custodian may require a requestor to pay the custodian's reasonable costs incurred in producing the requested material for inspection and the reasonable costs of copies of such requested material. The reasonable costs must be assessed in the manner established by the office of open records counsel pursuant to § 8-4-604.

SECTION 4. Tennessee Code Annotated, Section 8-4-604(a)(1)(A), is amended by deleting the first sentence and substituting:

A schedule of reasonable charges that a records custodian may use as a guideline to charge a citizen requesting to inspect or make copies of public records pursuant to title 10, chapter 7, part 5.

SECTION 5. This act takes effect on July 1, 2026, the public welfare requiring it.